Harris County District Court

Cause No. 2024-CV-0008

Samuel Nelson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 20, 2024
Plaintiff's counsel:	James Moody, Marshall & Dominguez LLP

Parties

Plaintiff Samuel Nelson is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is the automobile insurance company that issued the policy under which Plaintiff claims benefits and that is responsible for the obligations stated in that policy and under Texas law.

Facts

On December 30, 2023, Plaintiff was lawfully operating a passenger vehicle on a public roadway in Houston, Texas. Plaintiff was traveling at a reasonable speed and was properly positioned within his or her lane when another vehicle crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The impact was relatively low in speed, but it was forceful enough to jerk Plaintiff's head and neck violently forward and backward. Plaintiff immediately experienced neck pain and stiffness. Plaintiff sought medical evaluation and was diagnosed with a cervical neck strain, for which treatment, including physical therapy and prescribed medication, has been required. Plaintiff timely submitted a claim under the applicable coverage, and Defendant has not paid the amounts owed.

Negligence

Defendant, through its insured and under the policy's coverage terms, is liable for the negligent conduct of its insured driver, which caused the collision. Defendant further failed to act in good faith in adjusting Plaintiff's claim, failed to promptly communicate a reasonable settlement offer, and failed to conduct a reasonable investigation, in violation of Chapter 541 of the Texas Insurance Code and the duty of good faith and fair dealing.

Damages

As a direct result of the collision and Defendant's conduct, Plaintiff has suffered physical pain, mental anguish, medical expenses, lost wages, and loss of enjoyment of life. Plaintiff seeks actual damages, statutory damages, and attorney's fees in an amount to be determined by the trier of fact, and in no event less than $123,000.00, together with pre-judgment and post-judgment interest and court costs.